

Sulphur Mills Limited (Applicant) vs Shivalik Crop Science Private Limited on 6 April, 2021

Author: G.S. Patel

Bench: G.S. Patel

16-IAL7027-2021 IN COMIPL6877-2021.DOC

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION
IN ITS COMMERCIAL DIVISION
INTERIM APPLICATION (L) NO. 7027 OF 2021
IN
COMMERCIAL IP SUIT (L) NO. 6877 OF 2021

Sulphur Mills Ltd	...Plaintiff
Versus	
Shivalik Crop Science Pvt Ltd	...Defendant

Mr Rashmin Khandekar, i/b Dhru & Co, for the the Plaintiff

CORAM: G.S. PATEL, J
(Through Video Conferencing)
DATED: 6th April 2021

PC: -

1.

Heard through video conferencing.

2. On 31st March 2021, I asked the Plaintiffs to give fresh notice to the Defendant. In my order of that date, I noted that the Defendants were at liberty to appear online either themselves or through their Advocates. A copy of that order was transmitted by the Plaintiffs to the Defendants on 1st April 2021 by email. The email has not been returned or bounced. The Defendant is in Chandigarh. The hearing today is online and by video conferencing 6th April 2021 16-IAL7027-2021 IN COMIPL6877-2021.DOC entirely. There is no communication or message received by any of my staf

in attendance today from the Defendant or anybody on their behalf. We have taken the trouble of checking outside the Chamber from where I am holding this remote virtual hearing and there is no one present on behalf of the Defendant.

3. I will, therefore, in these circumstances proceed with the application.

4. This is a commercial intellectual property Suit and is an action in trade mark infringement and passing of. The Petition for leave under Clause XIV has been served. It is, therefore, made absolute. The cause of action in passing of is thus permitted to be combined with the cause of action in infringement.

5. The mark in question is Metalman. It has been used by the Plaintiffs since 2006. The Plaintiff manufactures and sells various crop protection agrochemicals including fertilizers, pesticides, insecticides, fungicides, herbicides etc. The Plaintiff has international subsidiaries and sales and distributes its products in more than 90 countries worldwide. It is one of the largest manufacturers of sulphur compositions.

6. From June 2006, the Plaintiff introduced a fungicide called Metalman. This is manufactured by the Plaintiffs itself and also through their associate, one Sumil Chemical Industries Pvt Ltd. The Plaintiff markets the product. It is a reputed product according to the Plaintiff. For the period from March 2006 until March 2020, the 6th April 2021 16-IAL7027-2021 IN COMIPL6877-2021.DOC Plaintiff manufactured and sold an aggregate quantity of 1,39,706.30 kgs of the product under this mark with an aggregate invoice value of Rs. 10,84,07,730/-. The product is sold in a powder form packed in a sachet or packet, which in turn is boxed. The Plaintiffs trade mark is displayed prominently both on the box and on the packet or sachet.

7. In February 2021, the Plaintiff had applied for registration of the mark Metalman in class 05 in relation to fungicide etc. The mark proceeded to registration on 21st July 2005.

8. In January 2020, the Plaintiff learnt that the Defendant was selling a competing fungicide also called Metalman. The mark is identical. So is the product. On 23rd January 2020 (there is an error in the date), the Plaintiffs sent the Defendant a cease and desist notice.

9. Paragraph 4.8 of the plaint say that the Plaintiff was unable to find the Defendantss product in the market thereafter. The Plaintiff was led to believe that the Defendant had ceased use of the mark and withdrawn it from the market. It was only towards the end of February 2021 that the Plaintiff learnt that the Defendantss product under the same mark Metalman was available in the market. The Plaintiffs contacted a dealer in Uttar Pradesh to procure the product from a distributor. This was done. A sample of this trap invoice is annexed. Paragraph 4.9 of the plaint contends that the Defendants product is an identical formulation, also sold in a powder form and also packed in a packet or sachet placed in a box. The sachet and the 6th April 2021 16-IAL7027-2021 IN COMIPL6877-2021.DOC box also have the name Metalman. The contention, therefore, is that not only is there a straightforward case of trade mark infringement and passing of because the two marks are not just similar but are indeed identical, but this is very likely a case of the Defendant

putting out a counterfeit product. Deception and confusion amongst the consumers is almost inevitable, not just likely or imminent.

10. Being satisfied that there is an ample prima facie case for the grant of relief, and that the balance of convenience is with the Plaintiff to whom considerable and irreparable prejudice would be caused if the reliefs are denied, and also bearing in mind the larger interest of the consumers of such product, I will grant the injunction against the Defendant from using the mark Metalman or any other identical or deceptively or confusingly similar mark in any manner whatsoever whether by itself or through any of its servants or agents.

11. This ad-interim order will continue until further orders.

12. The Defendant is also directed to file an Affidavit rendering a complete account from the date that it began use of the mark until the date of this order of all dealings and activities that it has conducted in relation to products under the mark Metalman.

13. Liberty to the Defendants to apply for variation, modification or recall of this order but only after seven clear working days written prior notice to the Advocates for the Plaintiffs.

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14. Affidavit in Reply is to be filed and served on or before 7th May 2021. Affidavit in Rejoinder, if any, is to be filed and served on or before 11th June 2021.

15. List the Interim Application for hearing and final disposal at 2.30 pm on 18th June 2021.

16. All concerned will act on production of an ordinary copy of this order.

(G. S. PATEL, J) 6th April 2021